

2025:PHHC:000053



**IN THE HIGH COURT OF PUNJAB & HARYANA
AT CHANDIGARH**

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CRWP-12674-2024

Date of decision: 01.01.2025

JASPREET KAUR AND ANOTHER

.....Petitioners

VERSUS

STATE OF PUNJAB AND OTHERS

.....Respondents

CORAM : HON'BLE MR. JUSTICE VINOD S. BHARDWAJ

Present:- Mr. Mohit Kumar, Advocate for the petitioners.

Mr. Balwinder Singh, AAG, Punjab.

VINOD S. BHARDWAJ, J. (Oral)

The petitioners namely Jaspreet Kaur and Gurwinder Singh have approached this Court under Article 226 of the Constitution of India for seeking protection of their lives and personal liberty from private respondents No.4 to 18.

The contention of the petitioners is that both are major, aged 21 years and 25 years respectively. In support thereof, copy of the Aadhaar Cards pertaining to the petitioners have been appended. The petitioners further contend that they have performed marriage against the wishes of their parents. The marriage of the petitioners was solemnized on 27.12.2024 at Gurudwara Guru Nanak Niwas Sahib, Village Karor Kalan, Tehsil Kharar, District Mohali as per Sikh rites and ceremonies. A copy of marriage certificate (Annexure P-3) issued

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by the aforesaid Gurudwara has also been appended. The petitioners apprehend threat to their lives and claim that there is a constant danger of them being implicated in a false case.

Notice of motion restricted to respondents No.1 to 3 only.

Pursuant to supply of advance copy, Mr. Balwinder Singh, AAG, Punjab appears and accepts notice on behalf of respondents No.1 to 3.

Learned counsel for the petitioners states that a representation dated 27.12.2024 (Annexure P-5) has also been submitted by the petitioners to the respondent No.2-Senior Superintendent of Police, Sangrur.

Learned State counsel has no objection if appropriate direction for providing requisite protection to the petitioners is given.

Without examining the question of legality and validity of the marriage and expressing any opinion thereon, the petition is disposed of with the directions to respondent No.2-Senior Superintendent of Police, Sangrur to look into the grievances of the petitioners as set out in the petition and also expressed in the representation (Annexure P-5) and take appropriate action for protection of their lives and liberty as may be warranted by the circumstances.

However, it is clarified that in case any criminal case has been/is registered against the petitioners, nothing in this order shall be



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construed as a bar for taking appropriate action by the police authorities in respect thereof in accordance with law.

The Registry is directed to send a copy of this order along with copy of the petition and above-said representation to respondent No.2-Senior Superintendent of Police, Sangrur for requisite compliance.

The petition is disposed of.

(VINOD S. BHARDWAJ)
JUDGE

JANUARY 01, 2025
Vishal sharma

Whether speaking/reasoned : Yes/No
Whether reportable : Yes/No